

Court Case Action Report

Case ID: 48

Date: 15/03/2023

Department: Revenue Department

Priority: Medium

Key Directives:

- within
- secured creditor shall be paid in priority over all other debts.
- anything remotely untoward let alone illegal within the
- Sub-registrar may be directed to register the sale certificate.
- directed the jurisdictional Sub-registrar to restrain registration
- the field and must be given full effect. It is submitted that the

Action Plan:

within

Deadline:

Summary:

Key Facts: The petitioner, Canara Bank, filed a writ petition against the State of Karnataka and others, seeking to set aside a gazette notification and direction, and to register a sale certificate in favor of the auction purchaser, Smt. Sarvamangala. The bank had sanctioned a housing loan to Late Shivakumar R and others, which was later classified as a Non-Performing Asset. The bank took possession of the property and sold it to Smt. Sarvamangala for Rs.7,10,66,000/-.

Court Decision: The court has made an oral order, the details of which are not provided in the given text. However, it can be inferred that the court has considered the petition and the facts of the case.

Required Action: The respondents, including the Sub Registrar and the jurisdictional police, are required to take necessary actions in accordance with the court's order, which may include registering the sale certificate and assisting the petitioner in handing over possession of the property to the auction purchaser.

Verification Status:

APPROVED